

Rules Relating To Deratisation Certificate In Respect Of Coasting Vessels In Bombay Port, 1938

Source: <https://indiankanoon.org/doc/149170162/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

0

[, Cited by](#)

0

]

[Union of India - Act](#)

[Rules Relating To Deratisation Certificate In Respect Of Coasting Vessels In Bombay Port, 1938](#)

[UNION OF INDIA](#)

[India](#)

[Rules Relating To Deratisation Certificate In Respect Of Coasting Vessels In Bombay Port, 1938](#)

[Rule](#)

[RULES-RELATING-TO-DERATISATION-CERTIFICATE-IN-RESPECT-OF-COASTING-VESSELS-IN-BOMBAY-PORT-1938 of 1938](#)

[Published on 23 July 1938](#)

[Commenced on 23 July 1938](#)

[\[This is the version of this document from 23 July 1938.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[Rules Relating To Deratisation Certificate In Respect Of Coasting Vessels In Bombay Port, 1938](#)

[Published vide Notification in the Gazette of India, 1938, Part 1, page 1295.](#)

[1734.](#)

No. F. 9-1/37-G, dated 23rd July, 1938. - In exercise of the powers conferred by Cl. (p) of sub-section (1) of Sec. 6 of the Indian Ports Act, 1908 (15 of 1908), the Central Government is pleased to make the following rules, the same having been previously published as required by sub-section (2) of the said section, namely :

[Rules](#)

1.

In these Rules "coasting vessel" means a vessel trading or otherwise plying between ports in India only.

2.

No coasting vessel or ferry steamer plying between the Port of Bombay and any other Indian port which, for the time being, is within the Port of Bombay shall leave that port unless the Master of such coasting vessel or ferry steamer is in possession of a Deratisation Certificate or a Deratisation Exemption Certificate issued not more than six months prior to the date of departure to the effect that such coasting vessel or ferry steamer has been inspected by an accredited Port Health Authority and that its rat population has been reduced to or (as the case may be) maintained at a minimum: Provided that the Port Health Officer may, in his discretion, exempt any such vessel or steamer from the operation of this rule for any period not extending beyond six months after these Rules come into force.

3.

The Port Health Officer, Bombay, may, in his discretion, require any coasting country craft or class of such craft plying between the Port of Bombay and any other Indian port which is, for the time being, within the limits of the Port of Bombay or any other lighter or barge or class thereof plying within the limits of the Port of Bombay, to be in possession of a Deratisation Certificate or a Deratisation Exemption Certificate dated not more than six months before the date of such requirement to the effect that such craft has been inspected by an accredited Port Health Authority and that its rat population has been reduced to or (as the case may be) maintained at a minimum.

4.

(1)

When any vessel, in respect of which a certificate is required by rule 2 or rule 3 to be issued or renewed, calls at the Port of Bombay, the Master or owner of such vessel or any person authorised to act in his behalf shall, if the vessel is not in possession of such a certificate, or if such certificate is more than six months old, forthwith submit to the Preventive Officer boarding the vessel, or to the Officer in charge of the Customs Office, a written statement to that effect.

(2)

The statements referred to in sub-rule (1) shall, in respect of a lighter or barge plying within the limits of the Port of Bombay, be submitted by the owner or person in charge of such lighter or barge direct to the Port Health Officer.

(3)

The fees chargeable for the issue and renewal of Deratisation Certificates or Deratisation Exemption Certificates shall be such as may be fixed by the Central Government from time to time.

(4)

Before any vessel of the type referred to in rules 2 and 3 is given port clearance from the Port of Bombay, the Master or owner thereof shall produce before the Customs Authorities the certificate prescribed by those rules; and, if such certificate is not so produced, port clearance shall be refused pending the receipt of instruction from the Port Health Officer.

5.

The foregoing rules shall not apply to any vessel driven into the Port of Bombay by stress of weather and anchoring out in the stream :

Provided that, if the Master of such a vessel desires to land any cargo either by discharging into lighters, barges, or otherwise or to enter any dock or come alongside any wharf to land such cargo or merchandise or for any other purpose, he shall forthwith notify the Customs Office of his intention to do so; and thereupon the provisions of the foregoing rules shall apply to such vessel as if it had entered the port in the ordinary way.

6.

The following persons shall be accredited Port Health Authorities for the purpose of these rules, namely.

(i)

for foreign ports, the persons specified in the "List of Ports qualified to issue certificates" issued from time to time by the Office International d'Hygiene Publique, and

(ii)

for Indian ports, the Health Officers of the Ports of Bombay and Calcutta.

Related AI tags, queries and research notes

Translation